Gmail Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Newanforbi v. Randstad US, LLC et al. — Courtesy Copies of Filed Proof of Service (Amended CCP § 425.115 Notice)

4 messages

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Wed, Sep 9 at 1:46 PM
To: Melinda Garcia <mgarcia@garciagurney.com>

Ms. Garcia:

I filed today the Proof of Service of the Amended Notice of Amount of Punitive Damages Sought (Code Civ. Proc. § 425.115) as to The RK Logistics Group, Inc. Attached are courtesy copies of the filed proof and of the Amended Notice that was served.

The Sacramento County Sheriff personally served the Amended Notice on RK Logistics' registered agent, CSC - Lawyers Incorporating Service, on August 21, 2026, at 11:21 a.m. (Levying Officer File No. 2026028894).

These are courtesy copies only. They do not change RK Logistics' September 14, 2026 date to respond.

On August 21 you asked for that date so insurance counsel could be sorted. I have not heard since then whether counsel has been identified, or whether Garcia & Gurney will remain counsel of record. Please let me know.

I am also available to meet and confer. If RK Logistics intends to demur or move to strike, Code of Civil Procedure section 430.41 requires that conference at least five days before September 14. Please let me know whether you — or successor counsel — are willing to do so, and when you are available by telephone.

Thank you,

Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per
(209) 801-4442
bnn.cdl@gmail.com

62127059_08_06_2026_Notice_of_Amendment_of_Amount_of_Punitive_Damages_Sought.pdf, POS-040 Proof of Service - Amended CCP 425.115 Notice - The RK Logistics Group Inc (Original for filing, Served Aug 21 2026, Levying Officer 2026028894).pdf

Melinda Garcia <mgarcia@garciagurney.com> Thu, Sep 10 at 10:23 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Karen Tai <ktai@garciagurney.com>

Mr. Newanforbi,

Thank you for your email and for providing courtesy copies of the filed pleadings. I also appreciate your willingness to participate in meet-and-confer efforts. Once litigation counsel has been assigned, I will pass along your request. As I have previously explained, I am not litigation counsel and do not handle the defense of litigation matters.

At this time, insurance counsel has not yet been assigned. Accordingly, I am writing to request that you stipulate to a further extension of my client's deadline to respond to the complaint, through September 30, 2026.

The basis for this request is that our insurer has not yet completed the process of assigning defense counsel. Because the insurer is a third party and this process is outside of my client's control, my client would be **prejudiced** if additional time is not granted to allow counsel to be retained and appear in the action.

If you are unwilling to stipulate to the requested extension, please let me know as soon as possible so that my client may determine whether it is necessary to seek relief from the court regarding the deadline for filing a responsive pleading.

Thank you for your consideration. I look forward to hearing your position.

Kind regards,

Melinda García, Esq.

GARCIA & GURNEY, ALC

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NOTE: Our firm never sends out links to documents.

García & Gurney
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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Wednesday, September 9, 2026 1:46 PM
To: Melinda Garcia <mgarcia@garciagurney.com>
Subject: Newanforbi v. Randstad US, LLC et al. — Courtesy Copies of Filed Proof of Service (Amended CCP § 425.115 Notice)

[Email external to Garcia & Gurney, ALC]

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Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Thu, Sep 10 at 10:42 AM
To: Melinda Garcia <mgarcia@garciagurney.com>
Cc: Karen Tai <ktai@garciagurney.com>

Ms. Garcia:

Thank you for your email of September 10, 2026, and for confirming receipt of the courtesy copies.

I cannot agree to a further extension of The RK Logistics Group, Inc.'s time to respond to the Complaint. On August 21 you asked for additional time so insurance counsel could be sorted. I granted that request through and including September 14, 2026. That date remains in place.

I remain available to meet and confer by telephone with you or with litigation counsel once assigned. Please have counsel contact me promptly if RK Logistics intends to demur or move to strike.

Regards,

Brendan

[Quoted text hidden]

Tod Gurney <tgurney@garciagurney.com> Thu, Sep 10 at 4:47 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>, Melinda Garcia <mgarcia@garciagurney.com>
Cc: Karen Tai <ktai@garciagurney.com>, Pol Minguet <pminguet@garciagurney.com>, Shinae Kim

<skim@garciagurney.com>

Hi Mr. Newanforbi,

I am the litigation partner here at Garcia & Gurney, ALC. As you know, my firm represents RK Logistics. As my partner Ms. Garcia previously explained, my client has been attempting to secure insurance coverage for your lawsuit. That determination is still pending. Because you are refusing to grant any further extensions of time to respond to your complaint, the matter has been shifted over to my desk for litigation handling.

I am just now beginning to get up to speed on this case, including reviewing the complaint for possible pleading issues that should be addressed at the outset of the case. One issue that I've noticed so far is you seem to be suing my client for wrongful termination, however, the facts alleged suggest that you had not ever started work at my client. Thus, based on my initial reading of the complaint, you cannot state a claim for wrongful termination. I also believe you will be unable to state a claim for invasion of privacy based on publicly available sex offender registry information. I would like to be able to meet and confer with you regarding these pleading issues and any others I may find. Unfortunately, given the press of business the next few days, I don't anticipate being able to do that before my client's response is due next week. Accordingly, I am renewing Ms. Garcia's prior request immediately below for another extension of time so that we can meet and confer with you. Please let me know if you will agree to that request.

Regards,

Tod C. Gurney, Esq., Shareholder

Garcia & Gurney, ALC

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